

09.09.2022

Fine for GDPR Violation

The National Supervisory Authority completed in August 2022 an investigation at SC Raiffeisen Bank SA and found a violation of the provisions of Art. 5 para. (1) letters a), b), and d) and Art. 6 of the General Data Protection Regulation.

SC Raiffeisen Bank SA, as a processor of an operator, was sanctioned as follows:

with a warning for violating the provisions of Art. 5 para. (1) letters a) and b) and Art. 6 of the

General Data Protection Regulation;

with a fine in the amount of 9,763.60 lei (equivalent to the sum of 2,000 EURO) for violating the provisions of Art. 5 para. (1) letter d) of the General Data Protection Regulation.

The investigation was initiated following a complaint filed by a petitioner who reported that an operator was sending text messages (SMS) to his mobile phone regarding the transfer of certain amounts of money to specific individuals, transfers that the petitioner did not carry out.

During the investigation, it was found that at SC Raiffeisen Bank SA, as a processor, the petitioner's phone number was incorrectly entered into the application provided by the operator for initiating transactions at the request of clients.

It was also noted that the petitioner was not a client of SC Raiffeisen Bank SA and had not requested the initiation of any transactions through the operator's application.

Furthermore, the supervisory authority found that SC Raiffeisen Bank SA, as a processor, had processed inaccurate data (the phone number) of individuals, occasional clients, who had carried out money transactions through the operator's application, using the petitioner's phone number in 44 transactions, thus violating the principle of data accuracy provided in Art. 5 para. (1) letter d) of the General Data Protection Regulation.

Legal and Communication Department
N.S.A.P.D.C.P.